

1.

CASE #	CASE NAME	HEARING NAME
CVME2504131	WELLS FARGO BANK, N.A. VS SKRIPEK	MOTION FOR JUDGMENT ON THE PLEADINGS

Tentative Ruling:

Hearing/Motion off calendar. Parties reached a stipulated agreement.

2.

CASE #	CASE NAME	HEARING NAME
CVME2511171	NAVY FEDERAL CREDIT UNION VS BROWN	MOTION TO COMPEL FURTHER RESPONSES OF DEFENDANT SHANAE BROWN TO PLAINTIFF'S FIRST SET OF INTERROGATORIES, REQUESTS FOR ADMISSION, AND REQUEST FOR PRODUCTION

Tentative Ruling:

Moving party: Plaintiff, Navy Federal Credit Union
Represented by: Silverman Theologou, LLP

Responding party: Defendant, Shanae Brown
Represented by: *self-represented*

Motion filed: 4/1/26
Opposition filed: 4/21/26
Reply filed: none

Meet and Confer Efforts

A motion to compel a further response to interrogatories, requests for production of documents, or requests for admission must be accompanied by a meet and confer declaration. (CCP § 2030.300(b), § 2031.310(b); § 2033.290(b).) The declaration must state facts showing a “reasonable and good faith attempt, **either in person, by telephone, or by videoconference**” to resolve informally the issues presented by the motion before filing the motion. (CCP § 2016.040(a).)

“The purpose of the meet and confer requirement is to force lawyers to reexamine their positions, and to narrow their discovery disputes to the irreducible minimum, before calling upon the court to resolve the matter.” (Weil & Brown, CPG: Civ. Proc. Before Trial (TRG 2026) § 8:1159 citing, *Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1016-2017.) “Failing to make a “reasonable and good faith attempt” to resolve the issues informally before a motion to compel is filed constitutes a “misuse of the discovery process” for which monetary sanctions can be imposed. (*Id.* at § 8:1174.)

Here, Plaintiff served the SRs, RFAs, and RPDs on 12/17/25. (Dec.Kostelidis ¶ 2, Ex. “A”.) On 1/26/26, Plaintiff sent a meet and confer letter stating that no discovery

responses had been received. (*Id.* ¶ 3, Ex. “D”.) On 1/29/26, Plaintiff received Ms. Brown’s discovery responses by mail. (*Id.* ¶ 4, Ex. “B”.) Plaintiff determined the responses were insufficient, evasive, and not Code-compliant, and sent a detailed meet and confer letter on 2/2/26. (*Id.* ¶¶5-6, Ex. “C”.) Defendant did not provide supplemental responses by the deadline, or thereafter. (*Id.* ¶ 7.) Plaintiff has **not** sufficiently met and conferred to support this motion **because it did not meet and confer “in person, by telephone, or by videoconference” as required by CCP § 2016.040(a).** Notably, at the prior hearing held on 5/4/26, the Court continued the motion to allow Plaintiff to properly meet and confer in the manner required by CCP § 2016.040(a). The Court also stated: “If Defendant properly responds to the discovery demands, Plaintiff is to notify this court to vacate the hearing. If Defendant does not properly respond to the discovery demands, Plaintiff is to file a Declaration stating the efforts made to meet and confer.” (Minute Order of 5/4/26.) As of 6/25/26, the motion remains on calendar. And no meet and confer declaration has been filed since the 5/4/26 hearing.

The Motion to Compel is **CONTINUED to August 6, 2026 at 8:00 a.m., Dept. M205** for further meet and confer efforts. Remote appearance allowed.

1. Plaintiff is to properly meet and confer in the manner required by CCP § 2016.040(a).
2. Plaintiff and Defendant are to meet and confer and resolve any deficiencies in Defendant’s responses.
3. If Defendant properly responds to the discovery demands, Plaintiff is to notify this court to vacate the hearing. If Defendant does not properly respond to the discovery demands, Plaintiff is to file a Declaration stating the efforts made to meet and confer.
4. Plaintiff is to give notice.